
Administrative Review Policies and Procedures for Local Agency Appeals

Policy: The State agency must provide full administrative reviews to local agencies that appeal specific adverse actions.

Regulations: 7 CFR 246.18

Procedures/Additional Guidance:

Administrative Review Procedures allow affected local agencies, who file an appeal concerning one of the actions listed in Subsection B of this policy, an opportunity to have a formal hearing by an impartial Administrative Hearing Official (hearing officer) at the State level. Hearings will be conducted in accordance with the Administrative Procedures Act, §24-4-105 and §24-4-106 C.R.S., Code of Federal Regulations 7 Part 246 and WIC policy and procedures.

These procedures provide a mechanism to ensure that:

- Local WIC Agencies (agency) have an objective and impartial avenue of redress when they feel they have been denied authorization, treated unfairly, or have had an adverse action taken against them by the State WIC Program (Program).
- Program standards, policies, procedures and regulations are being applied without prejudice.

Actions subject to Administrative Review

The following actions are subject to an Administrative Review:

- Denial of local agency's application;
- Disqualification of a local agency; and
- Any other adverse action that affects a local agency's participation.

Actions not subject to Administrative Review

The following actions are not subject to an Administrative Review:

- Expiration of an agreement;
- Denial of a local agency application if the State WIC Program's selection is subject to the procurement procedures applicable to the Colorado Department of Public Health and Environment (Department).

Procedures for an Administrative Review

- Notification of Action
 - ✓ When the adverse action is denial of a local agency's application, such denial is effective immediately, and no advance notice will be issued.
 - ✓ For all other adverse actions, the Program will provide the local agency with a written notice of the adverse action at least sixty (60) calendar days prior to the effective date of the action.
 - ✓ The notice of the adverse action shall include the action being taken, the cause(s) for the action, the effective date of the action, and the right to appeal the action. A copy of the Administrative Review Procedures will also be provided.

Appealing an Action

- ✓ Within thirty (30) calendar days of the receipt of the notice of action, the local agency must submit a written request for an Administrative Review to the State WIC Program. The written request should include the local agency name, action(s) being appealed, and the date of the request.
- ✓ A request for a hearing will be denied or dismissed if:
 - the request is not received within thirty (30) calendar days from the date the notice is received by the local agency;
 - the request is withdrawn in writing by the local agency or representative; and/or
 - the local agency or representative failed, without good cause as determined by the hearing officer, to appear at the scheduled hearing.
- ✓ Appealing an action does not relieve a local agency, permitted to continue in the Program while its appeal is in process, from the responsibility of continued compliance with the terms of the contract. The adverse action affecting a participating local agency shall be postponed until a hearing decision is reached.
- Administrative Review Hearing - General Rules and Procedures

- ✓ Upon receipt of the appeal request, the Program shall notify the local agency, in writing, that it has received the request. An explanation of the hearing procedures will be sent with the notice.
- ✓ The local agency will receive a minimum of ten (10) calendar days' advance written notice of the time and place of the hearing. At the time of the written notice the State WIC Office will notify the local agency of their right to:
 - examine, prior to or during the hearing, the documents and records presented to support the decision under appeal;
 - be assisted or represented by an attorney or other persons;
 - bring witnesses;
 - advance arguments without undue interference;
 - question or refute any testimony or evidence, including an opportunity to confront and cross-examine adverse witnesses; and
 - submit evidence to establish all pertinent facts and circumstances in the case.
- ✓ The Department will provide a hearing officer, an impartial decision maker, whose decision as to the validity of the action shall rest solely on the evidence presented at the hearing, the federal regulations and the Program's policies and procedures.
The local agency shall have the opportunity to present its case and at least one opportunity to reschedule the hearing date upon request.
- ✓ The hearing shall be conducted in accordance with the provisions of §24-4-105 C.R.S.

Administrative Review Decision

- ✓ Within sixty (60) calendar days of the receipt of the request for a hearing, the hearing officer must issue an initial Administrative Review Decision (decision) providing a summary of the facts of the case, specifying the reasons for the decision, and identifying the supporting evidence and the pertinent regulations or policy.
- ✓ The initial decision of the hearing officer shall be submitted, in writing, to the Executive Director of the Department. A copy of the decision will also be provided to the State WIC Program and the local agency.
- ✓ The local agency or Program may file a written appeal of the initial decision with the Department's Executive Director within fifteen (15) calendar days of receipt of the initial decision. The Executive Director may affirm, modify, or reverse the initial decision in accordance with C.R.S. 24-4-105.
- ✓ If an appeal is not received within fifteen (15) calendar days, the initial decision of the hearing officer will be adopted by the Executive Director and shall constitute the final action.
- ✓ If the decision is in favor of the local agency and authorization was denied the local agency will be authorized on receipt of the administrative review decision.
- ✓ If the decision regarding repayment of funds by the local agency is in favor of the Program, efforts to collect the funds will resume immediately.
- ✓ Immediately upon receipt of notice of the initial decision, the Program shall comply with the decision unless an appeal is filed pursuant to §24-4-105 C.R.S.
- ✓ After an unsuccessful appeal, the local agency and/or Program shall comply with the decision.
- ✓ The effective date of the action is the date the local agency receives the decision.
- **Withdrawal or Default of an Appeal**
 - ✓ A withdrawal of an appeal occurs when the local agency states, in writing, that it no longer wishes a hearing.
 - ✓ A default occurs when the local agency fails to appear at the hearing without good cause, or the local agency cannot be located through the last address of record.

Judicial Review

If the Department's final decision is rendered against the local agency, judicial review may be pursued in accordance with §24-4-106 C.R.S.

[§ 24-4-105. Hearings and determinations](#) & [§ 24-4-106. Judicial review](#)

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